

The Governors (Allowances and Privileges) Rules, 1987

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The Governors (Allowances and Privileges) Rules, 1987

UNION OF INDIA

India

The Governors (Allowances and Privileges) Rules, 1987

Rule THE-GOVERNORS-ALLOWANCES-AND-PRIVILEGES-RULES-1987 of 1987

Published on 30 March 1987

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The Governors (Allowances and Privileges) Rules, 1987

Published vide Notification No. G.S.R. 343(E), dated 30th March, 1987

Last Updated 16th June, 2018

Government of India

Ministry of Home Affairs

G.S.R. 343(E). - In exercise of the powers conferred by Section 13 of the Governors (Emoluments, Allowances and Privileges) Act, 1982 (43 of 1982), the [President]

[Substituted by GSR 949 (E) dated 28.12.1992]

hereby makes the following rules, namely:-

1.

Short Title and Commencement.

(1)

These rules may be called the Governors (Allowances and Privileges) Rules, 1987.

(2)

They shall come into force on the 1st day of April, 1987.

2.

Definitions.

- In these rules, unless the context otherwise requires:-

(a)

"Act" means the Governors (Emoluments, Allowances and Privileges) Act, 1982 (43 of 1982);

(b)

"Official residence" in relation to a Governor of a particular State means the corresponding residence (s) specified in column (2) of Schedule I to these rules;

(c)

"Schedule" means a Schedule appended to these rules;

(d)

Words and expressions used herein and not defined shall have the meaning respectively assigned to them in the Act.

3.

Renewal of Furnishings of Official Residences.

(1)

There shall be paid, from time to time, to each Governor an allowance equal to the actual expenses in renewing the furnishings of his official residence(s) subject to the maximum amount specified in column (3) of Schedule I.

Provided that if, when the Governor assumes office, the period which has elapsed since his predecessor assumed office (persons appointed to discharge the functions of the Governor being disregarded) falls short of five years, the maximum amount so specified shall be decreased by such amount as the President may by order determine;

Provided further that in the case of Governors holding office immediately before the commencement of these rules, the amount admissible to them during their entire terms shall be such as the President may by order determine.

(2)

The provisions of this rule shall not apply to persons appointed to discharge the functions of the Governor under article 160 of the Constitution of India.

4.

Household Establishment.

(1)

The total number of officers and other staff on household establishment at official residences shall be as the President may prescribe, from time to time, by an Order and their scale of pay, allowances, other emoluments and facilities shall be such as are admissible to the State Government officers and other employees of the corresponding posts in the concerned State Government from time to time.

(2)

The officers, and the staff of the household establishment shall be entitled to rent free accommodation and those of the officers and the staff who are not provided any Government accommodation shall be allowed house rent allowances at the rates admissible to the State Government Officers and other employees of the corresponding posts working in the concerned State Government and in such cases the first charge of ten percent on the pay shall also be met out of the Governor's allowances.

(3)

The staff of the household establishment shall not be allowed overtime allowance.

(4)

The officers and staff of the household establishment, who are provided government accommodation, shall be provided free electricity and water subject to the limit laid down by the Governor from time to time but such limit shall not exceed 6 ¼ percent of the pay of the members of the staff for the supply of both electricity and water. Provided that out of the limit of 6 ¼ percent the electricity charges shall not exceed 5 per cent in any case.

(5)

Any expenditure on consumption of electricity and water in excess of the limit specified in sub-rule (4) shall be borne by

the concerned officers or the member of the staff, as the case may be.

(6)

No member of the household establishment shall be allowed free use of official transport for private purpose.

Provided that the staff of the household establishment may be allowed to use government vehicles on payment of usual charges, subject to availability of vehicles.

(7)

The staff of the household establishment shall be entitled to pension and other retirement benefits including medical facilities as are admissible to the concerned State Government employees of the corresponding posts.

(8)

The expenditure to be incurred under sub-rule (1) shall be part of the governor's allowance and shall be drawn separately under the sub-head "Household Establishment".

5.

Expenditure on Governor's Secretariat etc.

(1)

In addition to the household establishment, the Governor shall be entitled to a separate secretarial staff which shall be provided by the concerned State Government.

(2)

The expenditure incurred on the establishment of the Governor's Secretariat and the expenditure on pension and other retirement benefits including medical facilities of the household medical establishment staff shall be charged on the Consolidated Fund of the concerned State.

(3)

The expenditure referred to in sub-rule (2) shall not form part of the Governor's allowance.

6.

Allowances of the Governors.

(1)

In order that the Governor may be able to discharge conveniently and with dignity the duties of his office, the Governor shall be paid annually the following allowances or grants, namely:-

(a)

entertainment allowance - to be spent for patronising art, culture and music and any unspent portion of the allowance under this sub-head shall lapse at the end of the financial year to which it relates;

(b)

hospitality grant - for meeting hospitality expenses of the official guests and any unspent portion of the grant under this sub-head shall lapse at the end of the financial year to which it relates;

(c)

office expenses allowance - for meeting expenditure on the following items:-

(i)

telephone charges; (ii) service postage (iii) books and periodicals; (iv) stationery and printing; (v) maintenance of motor cycles, scooters and cycles including POL for these vehicles; (vi) miscellaneous expenses;

Provided that any expenditure on the purchase of cycles, scooters or motor cycles shall be met directly by the State Government;

(d)

contract allowance - for being utilised for expenditure on the following items:-

(i)

special stationery; (ii) laundry contingencies; (iii) sports; (iv) fire wood (v) presents; (vi) soaps, cleansing material, insecticides; (vii) liveries; (viii) POL (other than expenditure from tour expenses); (ix) maintenance of cars (x) Library; and (xi) other miscellaneous expenditure;

(e)

grant for maintenance and repairs of furnishings - to be utilised for maintenance and repairs of furnishings of the official residence (s) and / or for the purchase of new items of furniture provided that maximum amount does not exceed the amount specified under this subhead;

(f)

tour expenses grant to be utilised for the tour expenses of the governor and expenditure on POL for cars of official residence (s) used for tours of the Governor.

(2)

The amount admissible under different sub-heads under sub-rule (1) shall be as specified in Schedule II.

[Provided that the Governor may, without exceeding the maximum amount specified in column (8) of the said Schedule, re-appropriate whenever necessary, from one subhead to another sub-head thereof.]

[Inserted by GSR 70(E) dated 1st February, 1989.]

3. [(a) and (b) omitted]

[Deleted by GSR 70 (E) dated 1st February, 1989.]

(4)

The amount specified under sub-heads relating to office expenses, maintenance and repairs of furnishings, contract allowance and tour expenses of Schedule II may, in any year, be increased by the amount not expended in previous years under the same sub-heads.

7.

Allowances for Maintenance of Official Residence(s).

- The Governor shall also be paid such allowances, each year, for the maintenance of Governor's official residence(s) under various sub-heads as specified in Schedule III;

Provided that the Governor may, without exceeding the maximum amount specified in column 7 of the said schedule, re-appropriate whenever necessary, from one sub-head to another sub-head thereof;

Provided further that the maximum amount specified in column 7 of the said Schedule may, in any year be increased by the amount not expended in the previous years.

8.

Travelling Allowance on Assumption or Vacation of Office.

(1)

The Governor shall be paid an allowance equal to the actual expenses incurred in undertaking journeys for the purposes specified in Section 9 of the Act, as travelling allowance for himself and members of his family and for transportation of his and his family's effects.

(2)

The expenditure to be incurred under sub-rule (1) shall be charged on the Consolidated Fund of the concerned State but shall not form part of the Governor's allowance.

9.

Leave.

- The President may grant leave to a governor for such duration as he may consider necessary.

10.

Medical Attendance and Treatment.

(1)

A Governor and members of his family shall be entitled, free of charge to medical attendance, accommodation and treatment on the scale and conditions applicable to the highest ranking member of the All India Services under the All India Services (Medical Attendance) Rules, 1954 as amended from time to time.

(2)

While on duty outside India, a Governor shall also be entitled, free of charge, to medical attendance, accommodation and treatment as may be admissible to the Head of Indian Mission at that place or at the place of treatment.

(3)

The State Government shall make adequate provisions for medical facilities for the Governor and his family and the expenditure on this account shall be charged on the Consolidated Fund of the State and this shall not form part of the Governor's allowances.

(4)

Medical attendance, accommodation and treatment of an Ex-Governor and his family shall be governed by the Rules/Orders issued by the Government of India in the Ministry of Health from time to time.

11.

Tours and Other Journeys.

(1)

The Governor shall be entitled to requisition a railway saloon for all his journeys within the State and shall be entitled to take with him not more than three persons without payment of any fare for them.

(2)

The cost of haulage and requisitioning of saloon under sub-rule(1) shall be met from the sub-head "tour expenses".

(3)

If, for his journey within the State by rail, a Governor chooses not to requisition a saloon under sub-rule (1), he shall be entitled to travel in a four berth compartment or coupe, whether first-class air-conditioned or first-class and during such a journey a Governor shall be entitled to take with him three persons in case of a four berth compartment and one person in case of a coupe, without any extra charge.

(4)

For journeys on official business to places outside the State, a Governor shall be entitled to travel in a four berth compartment or coupe, whether first class air-conditioned or first class and during such a journey, shall be entitled to take with him three persons in the case of a four berth compartment and one person in the case of a coupe, without any extra charge.

(5)

The spouse of the Governor may travel within the State by rail for attending functions organised by any organisation or associations connected with art, culture, science and literature and for that purpose may reserve a single seat in first-class air-conditioned or first class compartment and expenditure for such journey shall be met :

(i)

from the sub-head "tour expenses" if she is not associated in any capacity with that organisation or association; and

(ii)

by the organisation or association with which she is associated in any capacity; Provided that this facility shall not be available for private journeys of the spouse of the Governor.

(6)

A Governor travelling on duty (but not on non-official business) shall be entitled to travel by air and during such travel, shall be entitled to take one person with him at Government expenses.

(7)

[A governor while travelling on duty by air under sub-rule (6) may at his discretion travel in the executive class along with his spouse or with any person in lieu of his spouse and the person accompanying him during such a journey shall also be entitled to travel in the executive class.]

[Substituted by GSR 87(E) dated 10.2.2009]

(8)

[(a) Save as otherwise provided in clause (b), a Governor shall not be entitled to travel on private business by air at Government expenses and shall not also be entitled to take any person with him at Government expenses.

(b)

A Governor shall be entitled to travel on private business twice in a year during which he shall be entitled to take his spouse [or one person along with him in lieu of his spouse] by air, steamer or rail by the highest class or by road, to any part of India and such travel shall be deemed to be travel on duty;

Provided that the duration of such journey does not exceed [ten]

[Substituted by GSR 696 (E) dated 26.9.2001.]

days on each occasion;

[Second proviso omitted]

[Omitted vide GSR 87(E) dated 10.2.2009]

Explanation: For the purpose of this clause, a journey shall mean a point-to-point journey by the shortest route.]

[Substituted by GSR 275 (E) dated 11.3.1993.]

(9)

A Governor on his private journey outside the State [except for the two private journeys referred to in clause (b) of sub-rule (8)]

[Added vide GSR 275 (E) dated 11.3.1993.]

may travel in a four berth compartment or a coupe, whether first-class air-conditioned or first-class and he shall pay -

- (i)
the fare for two berths of the appropriate class if he travels in four berths compartments in addition to his own fare;
- (ii)
for his own fare, if he travels in a coupe; and
- (iii)
the reservation charges for the compartment or the coupe, as the case may be, and any other expenditure incurred during the journey.
- (10)
(a)
For the journeys performed under sub-rule (9), the cost of one fare only shall be met by the Government from the sub-head "tour expenses" and against that fare the Governor may take any person along with him who need not necessarily be a member of his family.
- (b)
[For journeys performed by the Governor under clause (b) of sub-rule 8, the expenditure shall be met by the Government under column (7) "tour expenses" of Schedule II.]
[Added vide GSR 275 (E) dated 11.3.1993.]
- (11)
[omitted]
[Omitted vide GSR 708 (E) dated 16.11.1993.]
- (12)
Where there is no railway station or airport in a State, any journey performed by the Governor or by the spouse of the Governor, for private purposes, to reach the nearest railway station or airport situated in a neighbouring State, shall be deemed to be an official journey.
12.
Entitlement of Travelling Allowance and Daily Allowance of the Household Establishment Accompanying the Governor.
- (1)
Any member of the Governor's household establishment accompanying the Governor on his visits within the state or outside the State, whether official or private, shall be treated as on duty and shall be entitled to draw travelling allowance and daily allowance as admissible under the State Government rules;
- (2)
Any member of the Governor's household establishment accompanying the spouse of the Governor during her journey within the State only shall be treated as on duty and shall be entitled to draw travelling allowance and daily allowance as admissible under the State Government rules.
Provided that no travelling allowance or daily allowance shall be admissible to any member of the Governor's household establishment accompanying any other member of the Governor's family or Governor's personal guest.
13.
Use of Motor Vehicles by the Governor etc.
- (1)
Any private journeys performed by the Governor outside the State by motor vehicles of the official residence(s) [except for the two private journeys referred to in clause (b) of sub-rule (8) of rule 11]
[Inserted vide GSR 275 (E) dated 11.3.1993.]
shall be paid for by the Governor at the staff car rates of the State Government.
- (2)
The spouse of the Governor shall be entitled to use, free of charge, the motor vehicles of the official residence(s) within the State only and for her journeys outside the State, if not accompanied by the Governor on official duty, shall be paid for by the Governor at the staff cars rates of the State Government.
- (3)
Any other members of the Governor's family or personal guests of the Governor not accompanying the governor or spouse of the Governor, may be allowed to use motor vehicles of the official residences within the State and charges for such journeys shall be paid for by the Governor at the staff car rates of the State Government.
- 14.

Interpretation.

- If any question arises as to the interpretation of these rules, it shall be referred to the Central government, who shall decide the same.

15.

Repeal and Saving.

(1)

All the orders in force immediately before the commencement of these rules in so far as they relate to matters provided for in these rules are hereby repealed.

(2)

Notwithstanding such repeal, anything done or any action taken under the orders so repealed shall be deemed to have been done or taken under the corresponding provisions of these rules.

[Schedule - I]

[Substituted by Notification No. G.S.R. 486(E), dated 24.5.2018 (w.e.f. 30.3.1987).]

[See sub-rule (1) of rule 3]

[Official residence(s) of the Governors and maximum amount admissible for renewal of their furnishings]

Sl. No.

Name of the State

Official residence(s)

Maximum allowance for renewal of furnishing

(in rupees)

(1)

(2)

(3)

1.

[Andhra Pradesh and Telangana]

[Substituted 'Andhra Pradesh' by Notification No. G.S.R. 546(E), dated 12.6.2018 (w.e.f 30.3.1987).]

The Government House at Hyderabad

600000

2.

Arunachal Pradesh

The Government House at Itanagar

1000000

3.

Assam

The Government House at Guwahati

600000

4.

Bihar

The Government House at Patna

6200000

5.

Chhattisgarh

The Government House at Raipur

806000

6.

Goa

The Government House at Daunapaula, Panaji

800000

7.

Gujarat

The Government House at Gandhinagar and

Rajbhawan Annexe, Ahmedabad

1500000

8.

Haryana

The Government House at Chandigarh

1000000

9.

Himachal Pradesh

The Government House at Shimla

450000

10.

Jharkhand

The Government House at Ranchi

725000

11.

Karnataka

The Government House at Bangalore

650000

12.

Kerala

The Government House at Thiruvanthpuram

400000

13.

Madhya Pradesh

The Government House at Bhopal and Panchmarhi

750000

14.

Maharashtra

The Government House at Mumbai, Ganeshkind

(Pune) and Nagpur

2670000

15.

Manipur

The Government House at Imphal

575000

16.

Meghalaya

The Government House at Shilong

800000

17.

Mizoram

The Government House at Aizwal

680000

18.

Nagaland

The Government House at Kohima

800000

19.

Odisha

The Government House at Bhubaneswar

950000

20.
Punjab
The Government House at Chandigarh
900000
21.
Rajasthan
The Government House at Jaipur and Mount Abu
100000
22.
Sikkim
The Government House at Gangtok
385000
23.
Tamil Nadu
The Government House at Guindy and Ootacamund
750000
24.
Tripura
The Government House at Agartala
450000
25.
Uttarakhand
The Government House at Dehradun and Nainital
650000
26.
Uttar Pradesh
The Government House at Lucknow
1000000
27.
West Bengal
The Government House at Kolkata and Darjeeling
800000

[Schedule-II]

[Substituted by Notification No. G.S.R. 486(E), dated 24.5.2018 (w.e.f. 30.3.1987).]

[See sub- rule (2) of rule 6]

[Allowances of Governors in respect of certain matters (in rupees)]

Sl. No.

Name of the State

Hospitality Expenses

Entertainment Expenses

Office Expenses

Maintenance and repairs of furnishings of
official residence

Contract Allowances

Tour Expenses

Total (maximum amount)

(1)

(2)

(3)

(4)

(5)

- (6)
(7)
(8)
1.
[Andhra Pradesh and Telangana]
[Substituted 'Andhra Pradesh' by Notification No. G.S.R. 546(E), dated 12.6.2018 (w.e.f 30.3.1987).]
500000
200000
800000
300000
1500000
2000000
5300000
2.
Arunachal Pradesh
300000
200000
600000
300000
800000
3200000
5400000
3.
Assam
150000
75000
400000
200000
500000
1500000
2825000
4.
Bihar
1600000
100000
5000000
1500000
1000000
7000000
16200000
5.
Chhattisgarh
201000
67000
403000
201000
672000
2016000
3560000
6.
Goa

150000
75000
500000
275000
675000
2000000
3675000
7.
Gujarat
1500000
200000
800000
300000
1200000
1500000
5500000
8.
Haryana
400000
150000
800000
300000
1800000
2000000
5450000
9.
Himachal Pradesh
800000
60000
500000
350000
1000000
1200000
3910000
10.
Jharkhand
217500
72500
435000
217500
725000
2175000
3842500
11.
Karnataka
800000
500000
1000000
250000
2500000
5000000

10050000

12.

Kerala

200000

70000

400000

200000

1000000

1300000

3170000

13.

Madhya Pradesh

437500

93750

625000

375000

1812500

1500000

4843750

14.

Maharashtra

2500000

150000

1800000

1000000

3700000

2300000

11450000

15.

Manipur

200000

100000

575000

115000

500000

1750000

3240000

16.

Meghalaya

700000

50000

450000

210000

675000

2100000

4185000

17.

Mizoram

250000

100000

375000

200000

560000

1875000

3360000

18.

Nagaland

300000

100000

400000

200000

700000

3000000

4700000

19.

Odisha

500000

100000

550000

340000

820000

1500000

3810000

20.

Punjab

400000

130000

600000

400000

1000000

1200000

3730000

21.

Rajasthan

2000000

1100000

2600000

100000

1000000

2500000

9300000

22.

Sikkim

110000

27500

275000

110000

440000

2500000

3462500

23.

Tamil Nadu

5000000
100000
1500000
1000000
4000000
5000000
16600000

24.

Tripura

350000
25000
250000
100000
400000
1500000
2625000

25.

Uttarakhand

800000
50000
400000
350000
900000
1100000
3600000

26.

Uttar Pradesh

800000
800000
600000
300000
1500000
2600000
6600000

27.

West Bengal

1200000
70000
1000000
350000
6000000
9500000
18120000

[Schedule-III]

[Substituted by Notification No. G.S.R. 486(E), dated 24.5.2018 (w.e.f. 30.3.1987).]

[See rule- 7]

[Allowances for the maintenance of official residence (in rupees)]

Sl. No.

Name of the State

Repairs

Gardens

Electricity

Water

Improvement

Total (maximum amount)

(1)

(2)

(3)

(4)

(5)

(6)

(7)

1.

[Andhra Pradesh and Telangana]

[Substituted 'Andhra Pradesh' by Notification No. G.S.R. 546(E), dated 12.6.2018 (w.e.f 30.3.1987).]

610000

300000

550000

150000

220000

1830000

2.

Arunachal Pradesh

1000000

800000

700000

75000

500000

3075000

3.

Assam

660000

400000

400000

100000

120000

1680000

4.

Bihar

700000

6000000

500000

220000

600000

8020000

5.

Chhattisgarh

887000

538000

538000

101000

161000

2225000

6.

Goa

1050000

600000

800000

200000

200000

2850000

7.

Gujarat

600000

400000

400000

200000

400000

2000000

8.

Haryana

450000

600000

600000

300000

210000

2160000

9.

Himachal Pradesh

500000

400000

900000

150000

100000

2050000

10.

Jharkhand

957000

580000

580000

108750

174000

2399750

11.

Karnataka

760000

1200000

700000

400000

760000

3820000

12.

Kerala

650000

350000

400000

200000

500000

2100000

13.

Madhya Pradesh

837500

937500

375000

62500

300000

2512500

14.

Maharashtra

8200000

1300000

4500000

1500000

2500000

18000000

15.

Manipur

759000

402500

460000

86250

138000

1845750

16.

Meghalaya

1584000

700000

800000

105000

250000

3439000

17.

Mizoram

725000

440000

1000000

275000

150000

2590000

18.

Nagaland

1000000

400000

800000

100000

300000

2600000

19.

Odisha

535000

340000

550000

135000

135000

1695000

20.

Punjab

600000

600000

600000

300000

300000

2400000

21.

Rajasthan

10000

500000

6500000

300000

10000

7320000

22.

Sikkim

726000

330000

440000

110000

132000

1738000

23.

Tamil Nadu

10000000

2000000

7000000

6000000

40000000

65000000

24.

Tripura

660000

300000

400000

100000

120000

1580000

25.

Uttarakhand

380000

1800000

400000

150000

100000

2830000

26.

Uttar Pradesh

25000000

2800000

7000000

40000

500000

35340000

27.

West Bengal

3631500

1000000

550000

1825000

200000

7206500

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